

SH10

Notice of particulars of variation of rights attached to shares



☒ **What this form is for**
You may use this form to give notice of particulars of variation of rights attached to shares

☐ **What this form is NOT for**
You cannot use this form to notice of particulars of variation of class rights of members company without share capital. If you do this, please use form SH10

FRIDAY

For other information please



A14 *A2K7WGW0* 01/11/2013 #105
COMPANIES HOUSE

1 Company details

Company number 0 8 5 5 5 8 3 1
Company name in full Alpha FMC Group Holdings Limited

→ Filing in this form
Please complete in typescript or in bold black capitals

All fields are mandatory unless specified or indicated by *

2 Date of variation of rights

Date of variation of rights 2 4 1 0 2 0 1 3

3 Details of variation of rights

Please give details of the variation of rights attached to shares

Variation A1 Ordinary Shares

DIVIDENDS

The rights of A1 Ordinary Shares holders to participate in dividends ranks pari passu with the holders of A2 Ordinary Shares and B Ordinary Shares. The holders of C Ordinary Shares have no right to participate in dividends

REDEMPTION

The Shares do not confer any rights of redemption

(See continuation sheets)

Continuation pages
Please use a continuation page if you need to enter more details

4 Signature

I am signing this form on behalf of the company

Signature

Signature

X  X

This form may be signed by
Director ①, Secretary, Person authorised ②, Administrator, Administrative receiver, Receiver, Receiver manager, Charity commission receiver and manager, CIC manager

① **Societas Europaea**
If the form is being filed on behalf of a Societas Europaea (SE), please delete 'director' and insert details of which organ of the SE the person signing has membership

② **Person authorised**
Under either Section 270 or 274 of the Companies Act 2006

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Presenter information

You do not have to give any contact information, but if you do it will help Companies House if there is a query on the form. The contact information you give will be visible to searchers of the public record.

Contact name Peter Hopton

Company name Eversheds LLP

Address One Wood Street

Post town London

County/Region

Postcode EC2V 7WS

Country

DX DX 154280 Cheapside 8

Telephone 0845 497 9797



Checklist

We may return forms completed incorrectly or with information missing.

Please make sure you have remembered the following:

- ☐ The company name and number match the information held on the public Register
- ☐ You have entered the date of variation of rights in section 2
- ☐ You have provided details of the variation of rights in section 3
- ☐ You have signed the form



Important information

Please note that all information on this form will appear on the public record.



Where to send

You may return this form to any Companies House address, however for expediency we advise you to return it to the appropriate address below:

For companies registered in England and Wales:

The Registrar of Companies, Companies House,
Crown Way, Cardiff, Wales, CF14 3UZ
DX 33050 Cardiff

For companies registered in Scotland:

The Registrar of Companies, Companies House,
Fourth floor, Edinburgh Quay 2,
139 Fountainbridge, Edinburgh, Scotland, EH3 9FF
DX ED235 Edinburgh 1
or LP - 4 Edinburgh 2 (Legal Post)

For companies registered in Northern Ireland:

The Registrar of Companies, Companies House,
Second Floor, The Linenhall, 32-38 Linenhall Street,
Belfast, Northern Ireland, BT2 8BG
DX 481 N R Belfast 1



Further information

For further information, please see the guidance notes on the website at www.companieshouse.gov.uk or email enquiries@companieshouse.gov.uk

This form is available in an alternative format. Please visit the forms page on the website at www.companieshouse.gov.uk

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Details of variation of rights

Please give details of the variation of rights attached to shares

Variation

A1 Ordinary Shares

CAPITAL

On a return of capital, a winding-up or liquidation of the Company or any other return of capital (each a "Relevant Event"), the assets of the Company available for distribution after payment of its debts and liabilities and of the costs, charges and expenses incurred in connection with such Relevant Event will be distributed amongst the shareholders as follows

Firstly, in paying to the holders of the C Ordinary Shares, an amount equal to the aggregate of the amount paid up (or credited as paid up) in respect of the nominal value and any share premium paid for such Shares, and

Secondly, the balance to be paid to the holders of the A1 Ordinary Shares, the A2 Ordinary Shares and the B Ordinary Shares in proportion to the number of A1 Ordinary Shares, A2 Ordinary Shares and B Ordinary Shares held by them respectively (pari passu as if they constituted one class of Share)

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Variation

A1 Ordinary Shares

VOTING

(1) Holders of C Ordinary Shares are entitled to cast 45% of the total number of voting rights capable of being cast by all holders of A1 Ordinary Shares, A2 Ordinary Shares (together the "A Ordinary Shares") and C Ordinary Shares

(2) Subject to (1), the holders of the A Ordinary Shares (as a class) shall be entitled to cast 100% of the voting rights that are not capable of being cast by the holders of the C Ordinary Shares.

(3) Where there is more than one holder of A Ordinary Shares each holder shall be entitled to cast that proportion of the voting rights capable of being cast by holders of A Ordinary Shares that his holding of A Ordinary Shares bears to the total number of A Ordinary Shares in issue

(4) The holders of B Ordinary Shares are not entitled to cast any vote at any general meeting of the Company